

Smt. Indrawati v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 31 March 2023 · WRIT - C No. 10127 of 2023 · **Assessment and demand quashed for fresh Supply Code order.**

HEADNOTE

Where the final assessment in an electricity-theft case does not advert to the consumer's objection sent by registered post and instead records that no objection was filed, the assessment and the demand notice raised on it are quashed. The licensee may pass a fresh order only after considering the objection and strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner challenged a notice dated 10 February 2023 issued by the electricity department for recovery of Rs.1,63,353 in a case of theft of electricity. The petitioner's case was that an objection dated 7 November 2022, sent the same day by registered post to the Executive Engineer, had not been considered while the final assessment was made. On 28 March 2023 the department was granted time to obtain instructions and the matter was listed afresh. On 31 March 2023 counsel for the department accepted that the assessment did not advert to the objection and recorded that none had been filed.

REUSABLE CONSTRUCTIONS

1. A final assessment in an electricity-theft case that does not advert to an objection the consumer filed, and that records that no objection was filed, is quashed together with the demand raised on it. ¶ 3-4
2. After that assessment is quashed, the licensee may pass a fresh order only after considering the objection and strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 4

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

final assessment in a theft case that ignores a filed objection

HOLDING

The final assessment order, which did not advert to the petitioner's objection and recorded that no objection had been filed, is quashed along with the consequent demand notice. The electricity department may pass a fresh order only after considering that objection and strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 3-4

FLAG The order requires a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005, and does not number a clause.

PRINCIPLE TAGS

final-assessment-ignoring-filed-objection-quashed The final assessment recorded that no objection had been filed and did not deal with the objection sent by registered post. The assessment and the demand notice were quashed, with liberty to pass a fresh order strictly under the U.P. Electricity Supply Code, 2005 after considering that objection. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS LIABLE FOR THE ALLEGED THEFT OF ELECTRICITY AND FOR THE SUM OF RS.1,63,353.

SCJ-3393 · Smt. Indrawati v. State of U.P. and others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.